Clerk of the Superior Court
*** Electronically Filed ***
M. Saldana, Deputy
10/22/2026 12:40:02 PM
Filing ID 23046642

Quarles & Brady LLP
One Renaissance Square
Two North Central Avenue
Suite 600
Phoenix, AZ 85004-2322
TELEPHONE 602-229-5200

John M. O'Neal (#015945)
John.ONeal@quarles.com
Jeffrey D. Gardner (#021783)
Jeff.Gardner@quarles.com
Anthony F. Pusateri (#036206)
Anthony.Pusateri@quarles.com

Attorneys for Defendant Big Brothers Big Sisters of Central Arizona

IN THE SUPERIOR COURT OF THE STATE OF ARIZONA

IN AND FOR THE COUNTY OF MARICOPA

MAUREEN GAUGHAN, bankruptcy trustee, for and on behalf of JOHN CD DOE, a single man,

Plaintiff,

v.

BIG BROTHERS BIG SISTERS OF AMERICA, a District of Columbia, non-profit corporation; BIG BROTHERS BIG SISTERS OF CENTRAL ARIZONA, an Arizona corporation; JOHN DOE 1-100; JANE DOE 1-100; and BLACK & WHITE CORPORATIONS 1-100,

Defendants.

NO. CV2020-014920

DEFENDANTS' REPLY IN SUPPORT OF MOTION TO STRIKE PURSUANT TO ARIZ. R. CIV. P. 7.1(F)

(Assigned to Hon. Christopher Whitten)

Defendants Big Brothers Big Sisters of America ("BBBSA") and Big Brothers Big Sisters of Central Arizona ("BBBSCA") (collectively, "Defendants") reply in support of the *Motion to Strike Pursuant to Ariz. R. Civ. P. 7.1(f)* (the "Motion to Strike") and in opposition to non-party David Campbell's ("Campbell") *Response to Motion to Strike and Sanctions Request* (the "Response").

It is not clear how Campbell is asking the Court to rule on his *Limited Motion to*

Correct the Record, Vacate Settlement-based Inactive Status, Restore Case to Active Calendar, and Reinstate Pretrial/Trial-Setting Conference (the "Limited Motion"). The Response states that Campbell "oppose[s] only the motion to strike and sanctions request," that he "appear[s] for [himself] only and claim[s] no control over estate claims," and that, if he "lacked authority to request restoration of the case to the active calendar," the Court "may deny that request." Response at 1, 2-3. Yet in the same filing he "maintain[s] that [he has] standing to seek this relief." *Id.* at 1. The Response does not respond to any of Defendants' arguments regarding the Limited Motion.

Whatever Campbell's position, the Court should strike the Limited Motion or, alternatively, deny it for the reasons set forth in the Motion to Strike: (i) Campbell is not a party to this case and holds no interest in the claims asserted in it; (ii) Campbell has not moved to intervene under Ariz. R. Civ. P. 24 or sought or obtained leave to participate in this case; and (iii) no statute, rule, or court order authorized a non-party to file the Limited Motion or to obtain the affirmative relief it requests. *See* Ariz. R. Civ. P. 7.1(f).

An award of fees remains appropriate regardless of whether Campbell now acquiesces in denial of the Limited Motion. Campbell asserts that "[d]enial for lack of standing is not itself sanctionable." Response at 2. That misses the point. Defendants do not seek fees merely because the Limited Motion fails for lack of standing; they seek fees because Campbell filed it knowing he had no standing. Under A.R.S. § 12-349(A), the Court "shall assess reasonable attorney fees, expenses and, at the court's discretion, double damages of not to exceed five thousand dollars" against a person who, among other things, "[b]rings or defends a claim without substantial justification" or "[u]nreasonably expands or delays the proceeding." A.R.S. § 12-349(A)(1), (3). Campbell's procedural objection under Rule 11 does not affect the Court's independent authority to award fees under § 12-349.

Campbell knew he had no standing to request any relief in this lawsuit, because he said so himself. At the May 15, 2025 hearing before the Bankruptcy Court, after a recess to confer with counsel, Campbell's counsel stated on the record: "we are agreeable to saying

the Estate owns it, the Estate controls it, and we're going to participate in the bankruptcy process as the debtor would ordinarily." Motion to Strike at 3 and Exhibit B to same. The Bankruptcy court then accepted that waiver, describing it as a stipulation "that the Debtor [*i.e.*, Campbell] agrees he doesn't hold any interest in the claims that are being asserted against Big Brothers Big Sisters, except for to the extent he might receive something from the Estate at the back end." *Id.*; *see also* Exhibit A to Motion to Strike (minute entry: "the debtor agrees that this claim is owned by the estate and waives any arguments that the claim belongs to him."). On that basis, the Bankruptcy Court declined to set a deadline for any motion to determine ownership. *Id*. Campbell's Response does not dispute any of this.

This is not a case of genuine mistake or misunderstanding. Campbell claims that the Limited Motion only "sought clarification after the case was reported settled and placed on the dismissal calendar." Response at 2. But the Limited Motion did not seek clarification; it asked the Court to vacate the dismissal/inactive-calendar deadline, restore the case to the active calendar, reinstate the Pretrial/Trial-Setting Conference, and bar dismissal of the Trustee's claims. Limited Motion at 6. Campbell knew he had no basis to request that relief and filed the Limited Motion anyway to interfere with the settlement between the actual parties to this lawsuit, because he is dissatisfied with what he stands to receive under it. *See id.* at 2-3 (Campbell "did not wish to proceed with the purported settlement."). Campbell's dissatisfaction with the settlement does not give him standing, and it is not a basis to force Defendants to spend time and incur attorneys' fees and costs responding to a frivolous filing. Any objection Campbell has to the Trustee's compromise of estate property is not proper before this Court, as the Limited Motion itself acknowledges. *Id.* at 4.

For these reasons, the Court should strike the Limited Motion or, alternatively, deny it, and should award Defendants, pursuant to A.R.S. § 12-349(A), the reasonable attorneys' fees and costs incurred in researching and responding to the Limited Motion and the Response. As required by A.R.S. § 12-350, Defendants request that the Court find that Campbell filed the Limited Motion without substantial justification, with knowledge that he held no interest in the claims and no authority to seek the relief requested, and that the

filing unreasonably expanded and delayed these proceedings, Defendants will submit a declaration of fees and costs upon the Court's request.

RESPECTFULLY SUBMITTED this 22nd day of October, 2026.

QUARLES & BRADY LLP
One Renaissance Square
Two North Central Avenue
Phoenix, AZ 85004-2391

By: */s/ Anthony F. Pusateri*
John M. O'Neal
Jeffrey D. Gardner
Anthony F. Pusateri

Attorneys for Defendant Big Brothers Big Sisters of Central Arizona

BERKE LAW FIRM PLLC
1601 N. 7th Street, #360
Phoenix, AZ 85006

By: */s/ Lori V. Berke*
Lori V. Berke

Attorneys for Defendant Big Brothers Big Sisters of America

ORIGINAL of the foregoing efiled via AzTurboCourt this 22nd day of October, 2026.

COPY of the foregoing emailed 22nd day of October, 2026, to:

Robert E. Pastor
Montoya, Lucero & Pastor, P.A.
3200 N. Central Avenue, Suite 2550
Phoenix, AZ 85012
pastor@mlpattorneys.com

Michael S. Daoudi
Law Offices of Michael S. Daoudi, PC
560 Kirts Blvd., Suite 104
Troy, MI 48084
msd@msd4law.com

Attorneys for Plaintiff

Lori V. Berke
Berke Law Firm PLLC
1601 N. 7th Street, #360
Phoenix, AZ 85006
lori@berkelawfirm.com
Attorneys for Defendant Big Brothers Big Sisters of America

David Campbell
11106 W. Lewis Ave.
Avondale, Arizona 85392
kjolseth1000@gmail.com
Non-Party "John CD Doe"

/s/ Jennifer Fortner